



DECISION

Complaint No. : POS/15/HYD/2025

Name and address of the complainant : Mr. Khalid Qureshi s/o. Muhammad Khan,
R/o Flat No: 09, 2nd Floor, City View Plaza,
Latifabad Unit No: 07, Hyderabad

Name of the Agency Complained against : Municipal Commissioner,
Hyderabad Municipal Corporation, Hyderabad

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : **ALLEGED ILLEGAL INSTALLATION OF PANAFLEX AND
BILL BOARDS ON ROOFTOP OF CITY VIEW PLAZA, UNIT
NO-07, LATIFABAD HYDERABAD**

Complaint

Mr. Khalid Qureshi on behalf of residents of City View Plaza Apartments filed a complaint dated 28.01.2025 wherein he alleged that two hoarding boards have been forcibly installed on the rooftop of the apartment building without getting NOC from the residents. The hoarding boards pose serious safety risks, structural hazards and have resulted unauthorized access to the rooftop. They approached the concerned authority for removal of bill boards from rooftop of the building but to no avail. Being aggrieved, he solicited intervention of this Institution.

Proceedings

2. The complaint was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) after receiving mandatory affidavit on Form "A" and other relevant documents.
3. This office issued notices vide letters dated 31.01.2025 and 21.02.2025 to the Municipal Commissioner, Municipal Corporation Hyderabad, the Director (Tax) Hyderabad Municipal Corporation, Hyderabad Assistant Commissioner, Taluka Latifabad Hyderabad and the Regional Director, Sindh Building Control Authority, Hyderabad for report.
4. The Deputy Director (Advertisement) Hyderabad Municipal Corporation submitted a report vide letter dated 20.05.2025 that all required documents including ownership documents, NOC's, Engineer's certificate and fee receipts were verified and then, NOC was issued by the HMC
5. The complainant vide his rejoinder dated 21.08.2025 informed that the rooftop is a joint property of all residents. The case was heard on 23.09.2025, attended by the complainant and Assistant Director (Advertisement) HMC who informed that the Advertiser M/s Sagar Arts/Saqib Ahmed has been issued notices for getting consent of all residents of the City View Plaza for installation of bill boards. However, due to non-compliance by the advertiser, the NOC has been cancelled.

(2)

6. The bye-laws of Building Control Regulations have been perused wherein the Rule 2.15 (Ownership & Use of Roof-To-Top) and 5.1.2024 (Sale or Transfer of the Project) of the Building Control Regulation 2020 reveals that “the rooftop is treated as a common-use facility in multi-storey residential buildings. No developer or individual stakeholder may utilize the rooftop for commercial purpose unilaterally, joint consent (NOC) of 2/3 owners/residents is mandatory.

The relevant rules are reproduced as under:

(OWNERSHIP & USE OF ROOF-TO-TOPS)

2.15.1 The owner ship rights of rooftops of flats/apartments/multi-storey/multi-unit buildings, having common ownership, shall be the property of all owners of the building jointly, up to 85% according to their share, including the owners of the top floor. The remaining 15% shall be the property of all owners of the Top Floor jointly, according to their share, in addition to their original shares. The rooftop shall be accessible to all owners/tenants as agreed jointly. The rooftop shall not be used/owned by the developer/owner or any one stakeholder in any case and the developer shall have No ownership rights in this regard.

5-1.24 (Sale or Transfer of the Project)

No Builder shall sell or transfer the whole project to any one for sale, or transfer the units of the project to the general public, unless prior intimation to the Authority is given and No Objection from the 2/3rd majority of the allottees is obtained. The new Builder shall assume all responsibility and liabilities of the agreement made between outgoing Builder and allottees, in addition the new builder/developer must get the previous NOC issued by the Authority revised/revalidated in his favour.

Findings

7. The investigation of the case established that the hoarding boards were installed on the rooftop without joint consent (NOC) of the residents which cannot be used for commercial purpose without permission and consent of the residents.

Decision

8. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of the Ombudsman for the Province of Sindh Act, 1991 (amended upto date), I, hereby direct the Municipal Commissioner, Hyderabad Municipal Corporation to remove the hoarding boards from the rooftop of City View Apartments in accordance with the law and submit a compliance report within 45 days.

Given under my hand and seal of office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 05th March, 2026